

BEFORE THE FEDERAL MARITIME COMMISSION

MSRF, INC.

Complainant,

v.

HMM COMPANY LIMITED,

Respondent.

FMC Docket No. 22-20

JOINT STATUS REPORT AND PROPOSED REVISED SCHEDULE

Pursuant to the Federal Maritime Commission Rules of Practice and Procedure, §502.141(h), the Complainant and Respondent (collectively the “Parties”) have met and conferred and submit this joint status report and proposed revision to the October 6, 2022 Scheduling Order in this matter in accordance with the Presiding Officer’s January 6, 2023 Order.

This case involves the review of a voluminous documentary record that is far larger and more challenging to deal with than the Parties anticipated. To date, the Parties have exchanged initial disclosures, requests for production of documents, a request for admissions (by Respondent) and have agreed on witnesses to be deposed and a structure for the depositions. In response to the requests for production of documents, the Parties have located and produced to each other a large number of responsive documents. All of the documents produced are electronically stored information (“ESI”). Unfortunately, both Parties have encountered difficulties in de-duplicating this ESI production because of the way the recipients of emails sent responses (often adding “cc” addresses, each of which adds a document to review) and the way these documents were stored (in Respondent’s case, for example, the data storage protocols meant that each responsive email had to be identified and prepared for production instead of simply culled from the e-mail server).

Complainant has just completed its review and production of documents to Respondent, which has introduced an additional 1,483 documents to an already large record. Although counsel have conferred several times in an effort to try and winnow these documents, the only effective way the production can be reviewed is through a page-by-page review. This has left the Parties unable take the depositions until this review is complete and the witnesses prepared accordingly. With document discovery close to complete, the Parties are currently engaged in document review and planning new deposition dates to replace the original dates.

Following the Complaint in this case, which was filed on August 19, 2022, Respondents timely filed their answer on September 13, 2022. The Parties also jointly filed a Status Report and Proposed Schedule on September 22, 2022.

In their exchanges, the Parties served their Initial Disclosures on September 20, 2022, and Respondent sent its First Requests for Production on October 7, 2022. Complainant served its First Requests for Production on October 14, 2022. Respondent also served its First Request for Admissions on Complainant on October 26, 2022.

On November 29, 2022, Complainant filed its Consent Motion to Extend the Deadline to Complete Depositions of Fact Witnesses, and this order was subsequently granted by the Presiding Officer on November 30, 2022.

The Parties, in preparing to produce documents in response to their respective requests for production jointly filed a Motion for Entry of a Confidentiality Stipulation and Proposed Protective Order on December 16, 2022 to allow for the exchange of confidential documents between the Parties. This Motion was granted, and the Order was entered on January 4, 2023.

Complainant produced documents in two separate productions, on December 21, 2022 and January 3, 2023. The first production included both responses to Respondent's Requests for

Admissions and the production of documents while the second production consisted of the additional approximately 6,500 documents.

Respondent also produced documents in two separate productions, on December 14, 2022 and on December 22, 2022. The bulk of the production was approximately 8,111 documents consisting of more than 58,000 pages. The review of just Respondent's materials, at the rate of 300 documents per day, is approximately one month of attorney time, and of course each side must conduct this review, doubling the effective review time. Significant time is also needed just to process and upload these materials to an electronic document review platform and prepare them for production.

Due to this volume and the unexpected inability of technology-assisted review to reduce the number of documents requiring review, the Parties have struggled to complete sufficient review of the documents in order to proceed with the depositions that were scheduled for January 5th and 6th. The Parties are currently actively reviewing the document production and preparing for depositions (four depositions have been noticed, two for each Party, which will take place live in Chicago).

Due to these unanticipated delays, it has become apparent that the Parties will not be able to complete fact discovery by the February 10, 2023 date in the Scheduling Order. Accordingly, the Parties respectfully and jointly request that the Court amend the current Scheduling Order to provide an additional sixty days for the completion of fact discovery and a shorter adjustment to the briefing schedule. The Parties propose the following revised discovery and briefing schedule:

<u>Event</u>	<u>Deadline</u>
Initial Disclosures	September 21, 2022
Initial requests for production ("RFP") of documents and electronically stored information ("ESI")	October 14, 2022

Complainant’s Notice of Expert TestimonyJanuary 16, 2023

Respondent’s Notice of Expert TestimonyJanuary 27, 2023

Last Day to Serve Interrogatories, Requests
for Admission, and Final RFPsMarch 3, 2023

Complete Deposition of Fact WitnessesMarch 10, 2023

Close of Discovery.....March 31, 2023

Complainant’s Brief, Proposed Findings of Fact,
and Appendix..... April 21, 2023

Respondent’s Opposition Brief, Responses to
Proposed Findings of Fact, Proposed Findings of Fact,
and Appendix.....May 12, 2023

Complainant’s Reply Brief and Responses to Proposed
Findings of Fact..... May 24, 2023

The Parties are mindful that the Presiding Officer, in her Order dated January 6, 2023, instructed the Parties to consider her deadline in issuing an initial decision within one year of the filing of the Complaint, or August 19, 2023. The Parties therefore propose an amended schedule that only adjusts the proposed briefing dates by approximately thirty days in order to provide the Court with approximately three months to provide an initial decision by August 19, 2023.

Accordingly, the Parties respectfully request that the Presiding Officer adopt the above outlined schedule in a revised scheduling order which considers both the scope of work remaining before discovery is complete while still reserving time for the Presiding Officer to consider and rule on the claims.

Respectfully submitted,

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Counsel for HMM Company Limited

Dated: January 9, 2023

CERTIFICATE OF SERVICE

I certify that, on January 9, 2023, a true and current copy of the foregoing Joint Status Report was filed via electronic mail with the Secretary of the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel:

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DATED: January 9, 2023



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